

19STCV09859 19STCV09859

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 19STCV09859 Hearing Date: July 22, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

22, 2026

CASE NAME: Bishop

L. J. Guillory v. Charisse Browner, et al.

CASE NO.: 19STCV09859

MOTION

FOR ORDER IMPOSING LIABILITY AGAINST THIRD PARTY GARNISHEE BLOCK, INC.

MOVING PARTY: Plaintiff/Judgment

Creditor Bishop J. Guillory

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An

order imposing monetary liability against third-party garnishee Block, Inc. for \$51,674.59, which includes attorneys' fees and costs in enforcement.

TENTATIVE RULING:

1. Motion

for order imposing liability against third party garnishee Block, Inc. is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On March 21, 2019, Plaintiffs Bishop Guillory and Mark Kudler filed an action against Defendants Charisse Browner, Robin Petgrave, Tomorrow's Aeronautical Museum, Xavier Becerra. ("Defendants") for damages, declaratory relief, and injunctions based on Defendants' alleged defamation and retaliatory measures against Plaintiffs while serving as directors of Defendant Tomorrow's Aeronautical Museum ("TAM").

On April 17, 2019, Defendant Xavier Bacerra filed an Answer.

On May 16, 2019, Defendants TAM and Robin Petgrave (collectively "Cross-Complainants") filed a Cross-Complaint, and on May 31, 2019, the operative First Amended Cross-Complaint ("FACC") against Plaintiffs Bishop Guillory ("Guillory") and Mark Kudler ("Kudler") (collectively "Cross-Defendants") for the following causes of action:

(1) Defamation;

(2) Intentional Interference with Prospective Economic Advantage;

(3) Declaratory Relief; and

(4) Fraudulent Concealment.

On May 31, 2019, Cross-Complainants filed a First Amended Cross-Complaint.¿¿

On January 28, 2020, Plaintiff Mark A. Kudler filed a request for dismissal as to all defendants for his claims only.¿

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On January 29, 2020, Cross-Complainants filed a request for dismissal as to Cross-Defendant Mark Kudler only.¿

On November 27, 2023 and November 28, 2023, the matter was called for trial.¿

On September 11, 2024, the court entered a Second Amended Judgment.

On May 20, 2025, Plaintiff filed a motion for order of earnings withholding order against Myra Petgrave, spouse of judgment debtor Robin Petgrave which the court GRANTED.

On June 30, 2025, Plaintiff filed a motion opposing Myra Petgrave's claim of exemption which the court GRANTED.

On April 30, 2026, Plaintiff filed an application for amended order granting judgment creditor's motion for earnings withholdings order against Myra Petgrave which the court GANTED.

On May 5, 2026, Plaintiff filed the instant motion for order imposing liability against third party garnishee Block, Inc. Oppositions were due on or before July 9, 2026. As of July 17, 2026, the court has not received any oppositions.

LEGAL STANDARD:

CCP § 701.020(a)(1) provides: “ If a third person is required by this article to deliver property to the levying officer or to make payments to the levying officer and the third person fails or refuses without good cause to do so, the third person is liable to the judgment creditor for whichever of the following is the lesser amount: (1) The

value of the judgment debtor's interest in the property or the amount of the payments required to be made.”

“If the third person's liability is established, the court that determines the liability may, in its discretion, require the third person to pay the costs and reasonable attorney's fees incurred by the judgment creditor in establishing the liability.” (CCP § 701.020(c).)

ANALYSIS:

Plaintiff contends relief is proper because they served Block, Inc. with a valid levy, Block, Inc. ignored it, and Block, Inc. remitted \$42,024.59 in funds to judgment debtor Robin Petgrave. Block, Inc. did not file an opposition.

“When a creditor has a judgment in its favor against a debtor, the creditor seeking to enforce the judgment against the debtor's property must (1) obtain a writ of execution from the trial court . . . and (2) complete and serve a notice of levy, which is directed to the judgment debtor or third person holding the debtor's property and notifies them of their duties and rights.” (Bergstrom v. Zions Bancorporation, N.A. (2022) 78 Cal.App.5th 387, 397-398.) “When the debtor's property is in the possession of a third person (such as a financial institution), the judgment creditor may serve the writ of execution and the notice of levy upon the third person.” (Id. at p. 398.) “[O]nce it does, the third person ‘shall’ ‘at the time of the levy or promptly thereafter’ ‘deliver to the levying officer any of the [judgment debtor's] property levied upon that is in the [third person's] possession’ or ‘control’ (1) ‘unless the third person claims the right to possession of the [judgment debtor's] property,’ or (2) ‘[u]nless the third person [otherwise] has good cause for failure or refusal’ to comply with the levy.” (Ibid.) “For purposes of the second exception, ‘good cause’ includes, but is not limited to, a showing that the third person did not know or have reason to know of the levy from all the facts and circumstances known to the third person.” (Ibid.)

“When the account is in the judgment debtor's name, the judgment creditor must follow the procedures applicable to any levy served on a third person and must also serve the judgment debtor with notice of the levy.” (Bergstrom, supra, 78 Cal.App.5th at p. 398.) “The financial institution where the account is held

may observe a 15-day holding period before releasing any funds to the judgment creditor.” (Ibid.)

“Once the financial institution is properly served as detailed above, an execution lien ‘arises’ as to the ‘amounts in [the] deposit account at the time of service on the financial institution.’” (Bergstrom, supra, 78 Cal.App.5th at p. 398.) “While this lien is in effect, the financial institution is not to ‘honor a withdrawal request or a check or other order for the payment of money from the deposit account’ unless there still will be ‘sufficient funds ... available to cover the levy’ . . . and the institution cannot be held liable to the depositor for doing so.” (Ibid.)

“If the financial institution (as a third person) ‘fails or refuses’ to ‘deliver property to the levying officer’ ‘without good cause to do so,’ the financial institution ‘is liable to the judgment creditor for’ the amount of the levy.” (Bergstrom, supra, 78 Cal.App.5th at p. 399.)

Here, there is good cause to hold Block, Inc. liable. First, Plaintiff provides evidence that judgment debtor held a bank account in his name dba Celebrity Helicopters which showed transfers into the account from the Square network (an ecosystem owned by Block, Inc.). (Declaration of Matthew C. Mickelson (Mickelson Decl.) ¶¶ 3, 4.) Second, Plaintiff had a writ of execution and notice of levy served upon Block, Inc. to remit payments due to judgment debtor to the Los Angeles County Sheriff. (Id. at ¶ 5.) Service was on June 9, 2025. (Ibid.) Third, Block, Inc. responded to the levy stated no account could be found. (Id. at ¶ 6.) Nonetheless, Plaintiff discovered that Block, Inc.’s Square payment network made 37 payments to judgment debtor beginning on September 5, 2025, despite the levy. (Id. at ¶ 8(a).) This indicates a failure or refusal to delivery property to the levying officer without good cause to do so.

Separately, Plaintiff sufficiently demonstrated support for their requested attorneys’ fees and costs in seeking to enforce this levy. (Mickelson Decl. ¶¶ 7, 10.)

Accordingly, the court GRANTS Plaintiff’s motion in full.

CONCLUSION:

For

the foregoing reasons, the court decides the pending motion as follows:

1. Motion

for order imposing liability against third party garnishee Block, Inc. is

GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 22, 2026 _____ Upinder

S. Kalra

Judge

of the Superior Court